

7.

CASE #	CASE NAME	HEARING NAME
CVPS2509844	CORTEZ VS CHAPMAN	MOTION TO QUASH OR MODIFY SUBPOENAS SERVED BY DEFENDANT WILLIAM CHAPMAN AND REQUEST FOR MONETARY SANCTIONS BY WENDY ALEJANDRA CORTEZ

Tentative Ruling: The court is authorized to order a subpoena be quashed, modified, or that compliance be directed, with or without limitations, on the filing of a motion. (CCP §§ 1985.3, 1985.6, and 1987.1.) A motion to quash or modify may be granted on the grounds that the matters sought to be discovered are privileged, protected, or beyond the scope of discovery. (CCP § 2017.010; *Rudnick v. Superior Court* (1974) 11 Cal.3d 924, 929.) Wendy brings this motion seeking to quash or modify five subpoenas because the documents sought are protected by his right to privacy and/or seek irrelevant information.

Based on the opposition and reply, Chapman has withdrawn the offending original set of deposition subpoenas and has reissued new ones limiting the time and scope of the subpoenas. Based on this, the motion itself is moot other than the request sanctions.

Under CCP § 1987.2(a), the Court has discretion to award sanctions, “if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena were oppressive. In the declaration of Plaintiffs’ attorney, multiple emails and a voicemail were left for defense counsel prior to the filing of the motion without any response (Declaration of Erick Palafox, ¶¶ 5-6.) Per Defendant’s attorney, the subpoenas were withdrawn approximately two weeks after the initial motion to quash was filed, with Defendant reissuing new subpoenas (that are subject to another motion to quash currently set for July 13th, 2026). (Declaration of Charmaine V. Jackson, section I.)

Sanctions in the amount of \$1,821.36 awarded (3.5 hours at \$500/hour + \$71.36 filing fee), payable in 30 days to Plaintiffs’ attorney.

Motion to Quash Amended Subpoenas and Case Management Conference confirmed for 7.13.26.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2509844	CORTEZ VS CHAPMAN	MOTION TO COMPEL

Tentative Ruling: Service of a proper deposition notice is sufficient to compel a party or the employee of a party to appear, testify, and produce records in their possession without a subpoena. (CCP §2025.280(a).) If a party deponent fails to appear or produce documents, without having serviced a valid objection under CCP § 2025.410, the party giving the notice may move for an order compelling the deponent’s attendance, testimony, and production of documents. (CCP § 2025.450(a).) Such a motion must be accompanied by a meet and confer declaration under CCP § 2016.040, or when the deponent failed to attend the deposition, a declaration stating that the moving party contacted the deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) “Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance

is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue.” (*Lelo v Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th 1109, 1124.)

Wendy noticed Chapman’s deposition for April 20, 2026, and was told days before the deposition that Chapman could not attend due to a scheduling conflict. (Declaration of Erick Palafox, ¶¶ 4-9.) Chapman’s counsel initially indicated that they would provide alternative dates for his deposition. (*Id.* at ¶ 10.) However, shortly after this representation, they indicated that they wanted to avoid having Chapman’s deposition taken due to his age and his intent to consent liability. (*Id.* at ¶¶ 11 and 13.) Wendy rejected Chapman’s attempt to not have his deposition taken. (*Id.* at ¶ 12.) The parties exchanged emails and spoke over the telephone regarding this issue but could not resolve this dispute. (*Id.* at ¶¶ 13-16.)

Chapman has provided no evidence that he is unable to sit for his deposition. While Chapman is 88 years old, accommodations can be made if he needs them – like a remote deposition or frequent breaks during deposition. His age alone is no reason to preclude his deposition from going forward. Chapman also argues that his deposition is not necessary because he intends to consent to liability. He points to his responses to requests for admission to support this assertion. While Chapman responds to requests indicating that he “admits responsibility for the ACCIDENT,” he also fails to deny requests that pertain to Wendy’s liability or fault for the accident. When asked to admit that Wendy did nothing to cause the accident, Chapman responds that he lacks sufficient information and knowledge to admit or deny this request. He responds in the same manner to requests asking him to admit that Wendy was not comparatively negligent. Due to this, it does not appear that Chapman is affirmatively admitting to liability for the accident.

Additionally, this lawsuit is not entirely based on the accident. It is also based on allegations of fraud against Abebe and State Farm for misrepresentations made that allegedly pertain to Abebe’s communications with Chapman. (Complaint, ¶¶ 65 and 74.) Chapman appears to contend that a motion to sever could impact the fraud allegations. While a motion to sever has been filed and is pending, it is brought under CCP § 1048(b), which allows for separate trials of causes of action asserted in a complaint. It would have no impact on discovery.

Wendy seeks sanctions against Chapman. Under CCP § 2025.450(g)(1), if a motion to compel a deposition is granted the court must impose sanctions unless doing so is unjust or the opposing party acted with substantial justification.

Motion to Compel Deposition of Defendant William Chapman GRANTED.

Defendant to be deposed within 20 days of this order.

Sanctions in the amount of \$1,323 awarded (2.5 hours at \$500/hour + \$73 filing fee), payable in 30 days to Plaintiffs’ attorney.